

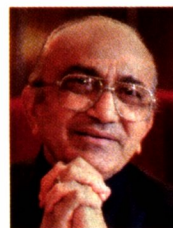
ACCORDING TO THE NATIONAL CRIME RECORDS BUREAU, THERE WERE 7.47 MILLION CRIMINAL CASES ALL OVER INDIA IN 2007 OF WHICH LESS THAN 6 PER CENT ENDED IN CONVICTION

ibility and the accountability of the honourable men and women in robes are under attack. Corruption in the judiciary is at an all-time high and stories of misconduct continue to tumble out of the cupboards. At least 34 sitting judges are under the scanner in Uttar Pradesh for their alleged involvement in the Ghaziabad court employees' provident fund scam. It took a mistaken home delivery of a Rs 15-lakh bribe to a sitting judge of the Punjab and Haryana High Court to put the focus on the rot in the courts. Justice Soumitra Sen of Calcutta High Court is facing impeachment for allegedly appropriating Rs 32 lakh as court-appointed receiver in a lawsuit (see box).

So far the judiciary has displayed a spirit of trade unionism while addressing corruption among its flock. High court or a Supreme Court judges can only be removed if they are ready to

step into the quagmire of the impeachment procedure. In cases of corruption, there is no scope for official investigation, unless the chief justice of India (CJI) relents. Such efforts to seek immunity from removal and investigation raise angry reactions. Until 1993, the judiciary was accountable to the legislature and the executive because the powers of appointment and transfer of judges vested partially in the government. This was an arrangement that enabled both to keep a check on the other. A judgement that year gave primacy to the opinion of the CJI formed in consultation with two senior-most judges of the apex court in regard to appointment and transfer of judges. But the principle has often come under strain, with the government deliberately dragging its feet on recommendations from the judiciary. Judges are now often selected not on merit but on how favourably they would be

“ I know what happens in the committee of five. I don't want to disclose that but we have seen the kind of appointments that have been made. ”



P.N. BHAGWATI
Former chief justice of India

being dragged into controversies



Y.K. SABHARWAL: The former CJI faced allegations of delivering orders on sealing operations in Delhi against principles of natural justice. He was also accused of furthering business interests of his family. No charges were proved.

ASHUTOSH ASTHANA: For eight years since 1999, the former central treasurer of the Ghaziabad court funnelled Rs 7 crore from treasury fund to buy expensive gifts for judges. The case is under investigation.



NIRMAL YADAV: The judge at Punjab and Haryana High Court was relieved from judicial work after her name was involved with cash-at-judge-door scam. Now she has asked the CJI to take her back to work "as nothing has been proved".



REASONS AND ALIBIS

DELAY IN RECRUITMENT

Official Reason: Enough talent not available to fill up the vast number of vacancies.

Actual Reason: Political interference and division among judges are main reasons.

DECLARATION OF ASSETS

Official Reason: Aggrieved may use it to malign the judiciary.

Actual Reason: Some members of the judiciary have a lot to hide.

FREQUENT ADJOURNMENTS

Official Reason: Too many cases placing heavy workload on judges.

Actual Reason: The nexus between some members of the judiciary and lawyers.

DELAY IN DISPOSAL OF CASES

Official Reason: Piled up cases, shortage of staff and infrastructure.

Actual Reason: Too many vacations and court holidays triggered by lawyers' strikes

INABILITY TO WORK IN COHESION

Official Reason: The lack of consensus between the judiciary and the executive.

Actual Reason: Judiciary does not want to be dictated to by the political executive.

“ There should be complete accountability. But by not agreeing to declare their assets, the judiciary allowed the public to question this faith. ”



MAHESH JETHMALANI
Lawyer